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Case Number: 23STCV07706 Hearing Date: June 29, 2026 Dept: 509

Arman Tadevosyan v. LA Fine Motors, LLC, et al.

PLAINTIFF'S MOTION FOR ATTORNEY'S FEES, COSTS, AND EXPENSES

MOVING PARTY: Plaintiff Arman Tadevosyan

RESPONDING PARTY(S): Defendant Capital One, N.A

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On March 3, 2023, Plaintiff Arman Tadevosyan purchased a 2011 BMW from Defendant LA Fine Motors. After the purchase, LA Fine Motors assigned the purchase contract to Defendant Capital One.

Plaintiff alleges that Defendant LA Fine Motors misrepresented the mechanical condition of the vehicle; sold the vehicle with defective headlights, blinkers, and emergency flashers; sold the vehicle for more than the advertised price; and failed to repair the vehicle's headlights as promised upon sale. Plaintiff brings causes of action for (1) Violation of the Consumers Legal Remedies Act, Civil Code § 1750, et seq, (2) Fraud & Deceit, (3) Negligent Misrepresentation, (4) Breach of Express Warranty, (5) Breach of the Implied Warranty of Fitness, (6) Breach of the Implied Warranty of Merchantability, (7) Violation of the Rosenthal Fair Debt Collection Practices Act, Civil Code § 1788, et seq., (8) Violation of the Unfair Competition Law, Business & Professions Code § 17200, et seq., and (9) Violation of Vehicle Code § 11711.

On April 8, 2026, Plaintiff filed this instant motion to recover their reasonable attorney's fees and costs. Defendant Capital One, NA (Defendant) opposed.

On May 29, 2026, a hearing was held on this motion. After considering the oral arguments of counsel, this Court allowed (without any objections) Plaintiff to lodge (under seal) the Settlement & Release Agreement for this Court to review and consider same in camera. See, Minute Order, 5/29/26) Plaintiff complied with said order. This Court has reviewed and considered said agreement (including addendum).

TENTATIVE RULING:

Plaintiff's Motion for Attorney's Fees is GRANTED in the amount of \$49,220.00.

Plaintiff's Motion for Costs is GRANTED in the amount of \$5,035.79.

This case is hereby DISMISSED WITH PREJUDICE, pursuant to the settlement agreement. This Court will expressly reserve jurisdiction to enforce said settlement agreement, per CCP §664.6.

The lodged documents will remain under seal, in the event of any future action(s).

Defendant is ordered to give notice, unless waived.

DISCUSSION:

Motion for Attorney's Fees, Costs, and Expenses

I. Analysis

A. Entitlement to Fees

Here, the parties reached a settlement of the action. (Klitzke Decl. ¶13.) On October 12, 2025, the parties entered into a Stipulation Regarding Motion for Attorneys' Fees and Costs. (Klitzke Decl., Ex. 3.) It states that the Parties agree that the outcome of any motion for attorneys' fees and costs will be subject to a minimum of \$40,000 and a maximum of \$80,000. (Ibid.)

Plaintiff now moves for an order awarding attorney's fee of \$80,000, the maximum recoverable under the stipulation. This amount consists of \$83,750 in attorney fees and \$5,035.79 in costs. (Klitzke Decl., Ex. 1-2.)

Civil Code, section 1794(d) provides:

(d) If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

(Civ. Code, § 1794, subd. (d) [emphasis added].)

Here, there is no dispute that Plaintiff is the prevailing party under the Song-Beverly Consumer Warranty Act. Accordingly, Plaintiff is entitled to an award of reasonable attorney fees as the prevailing party.

B. Reasonableness of Fees (Lodestar)

The determination of reasonable amount of attorney fees is within the sound discretion of trial courts. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095; Akins v. Enterprise Rent-A-Car Co. (2000) 79 Cal.App.4th 1127, 1134.) "The determination of what constitutes a reasonable fee generally 'begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate....'" "[T]he lodestar is the basic fee for comparable legal services in the

community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award....” (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of “fees customarily charged by that attorney and others in the community for similar work.” (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal.App.4th 976, 997 [affirming rate of \$450 per hour], overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal.4th 644, 664.) The burden is on the party seeking attorney fees to prove reasonableness of the fees. (Center for Biological Diversity v. County of San Bernardino (2010) 188 Cal.App.4th 603, 615.)

The Court has broad discretion in determining the amount of a reasonable attorney’s fee award which will not be overturned absent a “manifest abuse of discretion, a prejudicial error of law, or necessary findings not supported by substantial evidence.” (Bernardi v. County of Monterey (2008) 167 Cal. App. 4th 1379, 1393-94.) The Court need not explain its calculation of the amount of attorney’s fees awarded in detail; identifying the factors considered in arriving at the amount will suffice. (Ventura v. ABM Industries Inc. (2012) 212 Cal.App.4th 258, 274-75.)

It should be noted that state trial court opinions are unpublished and have no precedential value. (Neary v. Regents of Univ. of Calif. (1992) 3 Cal.4th 273, 282.) Likewise, “[w]hile unpublished federal district court opinions are citable, they do not constitute binding authority.” (Gong v. City of Rosemead (2014) 226 Cal.App.4th 363, 375.)

1. Reasonable Hourly Rate

Plaintiff’s counsel requests a rate of \$500 per hour and a paralegal rate of \$200 per hour. (Klitzke Decl., Ex. 1.)

Here, under the totality of the circumstances and based upon general prevailing rates in the Los Angeles area for this type of litigation, this Court agrees that the claimed hourly rates are unreasonable given this Court’s considerable experience in Song-Beverly cases, many of which culminate with an attorney’s fees motion. The Court will consider a blended rate of \$460 per hour. This determination considers the complexity of the case, the quality of services provided, and the attorney’s experience.

2. Number of Hours Reasonably Expended

Beginning to end, Plaintiff’s counsel seeks compensation for a total of 175.9 hours. (Klitzke Decl., Ex. 1.)

“It is the burden of the challenging party to point to the specific items challenged [within the moving party’s verified billing invoice], with a sufficient argument and citations to evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488.)

In opposition, Defendant contends the hours purportedly spent by Plaintiff’s counsel are excessive. Defendant argues that is vague, fragmented, duplicative, administrative, or block billed. Defendant further challenges specific hours associated with various motion billing such as Plaintiff’s unsuccessful motion for terminating sanctions. The Court has already awarded Plaintiff \$5,560 in monetary sanctions to compensate for their reasonable attorney’s fees. (See April 4, 2024, Minute Order.)

Here, this action has been pending for over three years, and this Court’s docket reflects minor law and motion practice in this matter. Defendant originally moved to compel this matter to arbitration but within a few months agreed to return this action to the active calendar. There were minor discovery disputes that ultimately were adjudicated in Defendant’s favor. However, there was nothing particularly complex or unique about this case. The issues involved were applicable to other consumers’ vehicles, thereby triggering economies of scale in terms of Plaintiff’s counsel’s efficiency in litigating this type of lemon law case. Litigating this matter should not have required anything more than slight factual modification to existing boilerplate. Consistent with these observations, Counsel’s billing records reflect a series of repetitive administrative-type tasks in junction with legitimate motion practice. Further, Plaintiff attests to bringing this instant motion at least thirty-five times. (Klitzke Decl.

¶18.) Therefore, this instant motion should have taken minimal effort given Plaintiff counsel's extensive experience in bringing these motions for attorney fees.

Considering these facts, this Court ultimately agrees that in some instances, the time quoted is excessive under the circumstances. In light of the foregoing discussion, and in view of the totality of the circumstances, the Court finds that the total amount of reasonable attorney fees in this case, using a lodestar methodology, is \$49,220. This was calculated by multiplying the hourly rate of \$460 by 107 hours, which this Court deems to be the reasonable time spent on all tasks in the matter including the time spent in support of this instant motion and excluding tasks already compensated for in this action. (April 4, 2024, Minute Order; Klitzke Decl. ¶18, subd. (m).)

Accordingly, Plaintiff's Motion for Attorney's Fees is GRANTED in the amount of \$49,220.

3. Costs and Expenses

Plaintiff seeks costs in the amount of \$5,035.79. (Klitzke Decl., Ex. 2.)

Code of Civil Procedure section 1033.5 sets forth the costs recoverable by the prevailing party. (Code Civ. Proc., §1033.5.) "Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc., §1033.5(c)(2); Perko's Enterprises, Inc. v. RRNS Enterprises (1992) 4 Cal.App.4th 238, 244.) "Allowable costs shall be reasonable in amount." (Code Civ. Proc., §1033.5(c)(3).) The court may allow or deny costs not mentioned in Code of Civil Procedure section 1033.5. (Code Civ. Proc., §1033.5(c)(4).)

"If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 774.) "There is no requirement that copies of bills, invoices, statements, or any other such documents be attached to the memorandum [of costs]. Only if the costs have been put in issue via a motion to tax costs must supporting documentation be submitted." (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267.)

Here, Defendant did not challenge the memorandum of costs.

Accordingly, Plaintiff's Motion for Costs is GRANTED in the amount of \$5,035.79.

4. In-Camera Review of Settlement Agreement Documents

In short, nothing contained in the settlement agreement materially affected this Court's tentative ruling. This Court's final ruling does not violate and/or conflict with any portion of that agreement. The lodged documents will remain under seal, in the event of any future action(s).

IT IS SO ORDERED.

Dated: June 29, 2026 _____

Randolph M. Hammock

Judge of the Superior Court